

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 08/07/2026

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Meeting ID: 161 336 0625

Passcode: 180770

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-00983

CASE NAME: DARCELL KELLY VS. EDDIE DRUMMER

***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE/ CONT'D PER TR FROM 7/17/26**

FILED BY: KELLY, DARCELL

TENTATIVE RULING:

Plaintiff and cross-defendant Darcell Kelly AKA Darcell Purefoy ("Plaintiff") brings the instant motion for summary judgment seeking an interlocutory judgment of partition ("Motion") in relation to her complaint for partition by sale ("Complaint") against defendant and cross-complainant Eddie Drummer ("Defendant").

For the reasons discussed below, the Court **DENIES** Plaintiff's Motion.

Legal Standard for Motion for Summary Judgment

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.)

Background

Summary of Allegations from the Complaint

Plaintiff filed the Complaint in this matter on April 8, 2025, which asserts one cause of action for partition by sale. (Complaint, pp. 1-5.) The property in question is located at 1748 Landana Drive, in Concord, California (the “Property”). (Complaint, ¶ 7.) On April 23, 2019, a grant deed transferring the Property to “Eddie Drummer, a single man, Darcell Purefoy, an unmarried woman, and Vernelle Crittendon, a single man, all as Joint Tenants” was recorded. (*Id.* at ¶ 8.)

The Complaint alleges that Defendant has refused to voluntarily sell the Property or buy out the share of Plaintiff’s interest, thus Plaintiff is filed the instant action in order to have the Property partitioned by sale. (Complaint, ¶ 9.) Around October 2, 2022, joint tenant Vernelle Crittendon passed away leaving Plaintiff and Defendant as the remaining joint tenant owners. (*Id.* at ¶ 10.) “Before filing this action, on or about February 25, 2023, Plaintiff requested by a written demand that Defendant either (1) obtain a mortgage for the property that removes Plaintiff’s name from the loan and deed; (2) sell the property and divide the net proceeds equally; or (3) go to court and have a partition order granted by the judge for a forced dissolution of the joint tenancy. In response to this written demand, Defendant has repeatedly stated that he would not sell the property and has threatened the life of Defendant and her son in response.” (*Id.* at ¶15.) As of the date Plaintiff filed the Complaint, Defendant had not agreed to either obtain a mortgage for the Property that removes Plaintiff’s name from the loan and deed or sell the Property. (*Id.* at ¶ 16.)

Plaintiff seeks compensatory damages, pre-judgment interest, partition by sale of the Property, attorney fees and costs, an order of disbursement be made according to an allowance, accounting, contribution, and other compensatory adjustments according to principles of equity, and for other equitable relief that may include changing locks in the event of Defendant’s non-cooperation with the orderly sale of the Property. (Complaint, p. 5.)

Summary of Allegations from the Cross-Complaint

In the first amended cross-complaint (“Cross-Complaint”), Defendant asserts claims for breach of contract, fraud, unjust enrichment, and promissory estoppel. (Cross-Complaint, pp. 1-16.) The Cross-Complaint alleges that when Plaintiff and Defendant purchased the Property together it was agreed

that Defendant would be the actual owner of the Property and that Plaintiff would not be the owner but had signed the mortgage papers solely to assist Defendant as necessary to qualify for financing so that Defendant could acquire the Property. (Cross-Complaint, p. 4, attach. BC-1.) Defendant alleges that this was agreed to because Plaintiff would then benefit from showing a history of payments for credit purposes that would enhance her ability to acquire real property of her own in the future. (*Ibid.*) “It was further agreed between” Plaintiff and Defendant “that although the mortgage lender required [Plaintiff] to be on the title to the property, that as agreed the [Defendant] would be the sole and actual owner of the property. In reliance on the promise of the Cross-Defendant, [Defendant] signed the documents regarding title and loan.” (*Ibid.*) “It was further agreed between the parties that [Defendant] would occupy the said property, pay all mortgage payments on said property, pay all property taxes and insurance on said property, and be solely responsible for all maintenance on said property. In reliance therein on the promises of [Plaintiff], [Defendant] moved into the subject property, paid all of the taxes and insurance, and maintenance on the property as well as the mortgage payments. Defendant, in turn, received the benefit of having the mortgage payments made resulting in an enhanced credit score allowing her to qualify for a home.” (*Ibid.*)

Defendant asserts that Plaintiff’s filing for a partition by sale in which she claims to be entitled to 50% of the current net value of the property is a breach of the initial agreement made on or about April 23, 2019, in which she promised that Defendant would be the sole owner of the property and that her sole involvement would be to provide financial assistance to co-signing the loan papers which allowed Defendant to purchase the property. (Cross-Complaint, p. 5, attach. BC-2.) Defendant’s fraud claim is based on modified versions of the above, but with the difference that at the time the agreement/promise was made Plaintiff had no intention of actually following the promise/agreement. (Cross-Complaint, pp. 6-14.) Defendant’s promissory estoppel and unjust enrichment claims are based on the same set of facts as well. (Cross-Complaint, p. 15.)

Defendant seeks damages of no less than \$300,000 plus interest, attorney fees, and exemplary damages. (Cross-Complaint, pp. 2, 16.)

Requests for Judicial Notice

Plaintiff requests the Court take judicial notice of: (1) a copy of the Promissory Note and Deed of Trust for the Property [Exh. B to Appendix of Exhibits ISO Motion]; (2) the Grant Deed for the Property [Exh. C to Appendix of Exhibits ISO Motion]; and (3) a copy of the death certificate of Vernell Crittendon [Exh. D to Appendix of Exhibits ISO Motion].

The Court **grants** Plaintiff’s requests for judicial notice 1 to 3.

Undisputed Material Facts

The Motion relies on seven proposed undisputed material facts (“UMF”). (Separate Statement ISO Motion, pp. 1-3.) Of these, Defendant contests two of them. (Separate Statement ISO Opposition, pp. 2-3.)

UMF Nos. 2, 3, 4, 5, and 6

The UMFs that are not contested are shown below:

2. The Subject Property consists of three bedrooms and two bathrooms. The Subject Property is 1,573 square feet. The Subject Property is zoned “single family residential.”	3. At the time of the purchase of the Subject Property, Defendant was Plaintiff’s nephew.
4. Under the Grant Deed for the Subject Property title to the Subject Property vested to “Eddie Drummer, a single man, Darcell Purefoy, an unmarried woman, and Vernelle Crittendon, a single man, all as Joint Tenants.”	5. On or about October 2, 2022, Plaintiff’s father and joint tenant, Vernell Crittendon passed away.
6. Plaintiff does not reside at the Subject Property, and Plaintiff has never resided at the Subject Property. Since the purchase of the Subject Property, Defendant has remained the sole tenant-in-possession.	

UMF Nos. 1 and 7

The UMFs that are contested are UMF Nos. 1 and 7. UMF No. 1 states that “On or about April 23, 2019, Defendant, Plaintiff, and Vernell Crittendon purchased the Subject Property for \$610,000.” (Separate Statement ISO Opposition, p. 2.) As evidence, Plaintiff cites to paragraph 2 of her declaration and a copy of the Buyer’s Settlement Statement. Defendant disputes this by asserting that “Defendant disputes that the plaintiff purchased the subject property. In fact, the Plaintiff was on the title only.” (*Ibid.*) He cites to his declaration in support of the opposition and the verified cross-complaint which he states contains an admission by Plaintiff that she is not an owner of the property. (*Ibid.*)

UMF No. 7 states that “Defendant has failed to make timely mortgage payments since purchasing the Subject Property, which has negatively affected Plaintiff’s credit.” (Separate Statement ISO Opposition, p. 3.) As evidence, Plaintiff cites to paragraph 8 of her declaration and a copy of the mortgage statements for the Property. (*Ibid.*) Defendant disputes this and cites to his declaration in support of the opposition and his verified cross-complaint as evidence. (*Ibid.*)

Discussion

Summary of Arguments

Moving Papers

Here, Plaintiff asserts in the factual background section of the Motion that Defendant is her nephew and he had desired to purchase the Property but due to his poor credit, he was unable to qualify for a mortgage on his own. (Motion, p. 2.) Defendant asked Plaintiff to jointly apply for a loan so he could acquire the Property, and Plaintiff and her father ended up jointly applying for and were approved for a loan to purchase the Property. (*Ibid.*) Plaintiff's father passed away leaving only Plaintiff and Defendant as joint tenants. (*Ibid.*) Plaintiff only helped Defendant as an accommodation because Defendant could not qualify to purchase the Property on his own due to his credit history. (*Id.* at p. 3.) Defendant has failed to make timely mortgage payments and as a result, Plaintiff's credit has been negatively affected. (*Ibid.*) Plaintiff demanded that Defendant obtain a new mortgage that removes her name from the loan and deed or sell the Property and divide the net proceeds equally or go to court and have a partition order entered by a judge for forced dissolution of the joint tenancy. Defendant responded by threatening Plaintiff's life and her son's life and has refused to obtain his own mortgage that removes Plaintiff's name from the loan and deed or sell the Property. (*Ibid.*)

Plaintiff argues that she is "entitled to partition by sale of the property." (Motion, pp. 4-7.) She discusses why a partition by sale would be preferred over partition in kind. (*Id.* at pp. 5-7.) Plaintiff then argues that she is entitled to one-half of the sale proceeds due to a 50% interest in the Property based on her status as a joint tenant. (*Id.* at pp. 7-8.) After the third joint tenant on the deed passed away, the Property was held in joint tenancy between only Plaintiff and Defendant. (*Ibid.*) Next, Plaintiff argues that the Court should appoint a referee to sell the Property and provide an accounting and award her attorney fees. (*Id.* at pp. 8-9.)

Opposition

Defendant's background facts are similar to Plaintiff's, in that he asserts that he could not buy the Property due to his credit, so Plaintiff helped him qualify for the loan. (Opposition, p. 1.) He additionally contends that Plaintiff's only involvement was to assist with the credit. (*Ibid.*) Defendant further argues that there is a dispute as to the ownership interests of the Property such that Plaintiff's Motion should be denied. (*Id.* at p. 2.) He cites Witkin as citing Code of Civil Procedure section 872.720, subdivision (a), for the proposition that "in an action for partition, the court first makes an interlocutory order or decree directing partition and determining the respective interests of the parties." (*Ibid.*) He argues that it is his contention that Plaintiff has a 0% interest and that he has a 100% interest. (*Ibid.*) He then argues that the doctrine of estoppel prevents the statute of frauds from applying in this case and that promissory estoppel also applies. (*Id.* at pp. 2-4.) He finally argues that part performance is an exception to the statute of frauds, Plaintiff admitted in text messages that he was the legal owner, and that Plaintiff would be unjustly enriched if the partition were to proceed as she has requested. (*Id.* at pp. 4-5.)

Reply

Plaintiff argues that she has an absolute statutory right to partition and that Defendant's claim of sole ownership of the Property is erroneous. (Reply, pp. 3-5.) She asserts that "Defendant presents no compelling evidence to refute the presumption created by the recorded grant deed naming Plaintiff as a co-owner of the Subject Property." (Reply, p. 4.) She argues that the text messages Defendant submitted with his declaration merely demonstrate her intention to no longer have any obligation with the Property that she did not reside in. (*Ibid.*) Plaintiff argues that Defendant presents no evidence that any agreement was made that Plaintiff would have no interest in the Property and that such an agreement would violate the statute of frauds at any rate. (*Ibid.*) Plaintiff points out that the Buyer's Settlement Statement clearly shows Plaintiff provided a \$10,000 deposit for the purchase of the Property. (*Ibid.*) Finally, Plaintiff argues that she is entitled to one-half of the sale proceeds as a joint tenant. (*Id.* at p. 5.)

Plaintiff's Objections to Defendant's Evidence

Plaintiff submits nine objections to the evidence submitted by Defendant in support of his opposition. Objections 1, 2, and 3 are to specific lines of Defendant's declaration in support of his opposition. Objections 4, 5, 6, 7, 8, and 9, are to Exhibits A to F to Defendant's declaration in support of his opposition. The Court **overrules** Plaintiff's objections.

Analysis

"[A]lthough the action of partition is of statutory origin in this state, it is nonetheless an equitable proceeding" (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) "The standard of review for an interlocutory judgment of partition is abuse of discretion." (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597.)

Dispute as to the Interests in the Property

"[A]n interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition." (*Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143.) "[A]t a minimum, a viable interlocutory partition judgment must include both a determination of the parties' interests and order partition." (*Id.* at p. 141, fn. 2.) "The interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action." (Code Civ. Proc., § 872.610.) "Section 872.610 continues the substance of the first portion of former Section 759. The section makes clear that the court may resolve any title disputes in the course of the proceeding where placed in issue by answer of a defendant or cross-defendant." (Code Civ. Proc., § 872.610 [Law Revision Commission Comment].)

Here, despite a tenant in common's absolute right to partition, this does not equate to an absolute right to partition via summary judgment. In this case, there is a dispute of material fact as to the interests of Plaintiff and Defendant in the Property. Notably, Plaintiff's separate statement in support of the Motion did not address the parties' interests in the Property, beyond being joint tenants, despite the fact that the Court is required to rule on the interests in the Property in an interlocutory judgment of partition order. (Separate Statement ISO Motion, pp. 2-3; *Summers v. Superior Court*

(2018) 24 Cal.App.5th 138, 143 ["an interlocutory judgment in a partition action is to include two elements: a determination of the parties' interests in the property and an order granting the partition."].)

Plaintiff's reliance on the joint tenancy alone is insufficient for the purpose of obtaining summary judgment seeking an interlocutory judgment of partition, especially in a case such as this, where Defendant contests Plaintiff's assertion of a 50% interest by asserting she has 0% interest in the Property. (Opposition, p. 2:14-18; Defendant's Decl. ISO Opposition, pp. 1:24-2:25.) The Court finds there is a dispute of fact as to Plaintiff's and Defendant's respective interests in the Property. The Court of Appeal has addressed this topic and framed it well for the purposes relevant to this instant action:

It is claimed that this is an action for the partition of property held in joint tenancy, and that a joint tenant is, *ipso facto*, an owner of an undivided one-half interest. This argument is without merit. *Cosler v. Norwood*, 97 Cal.App.2d 665 was an action for partition of real property held in joint tenancy. The judgment of the trial court ordering a three fourths-one fourth division of the proceeds, according to the relative contributions of the parties, was upheld. At page 666 the opinion states: "There is no merit in plaintiff's contention that since the title to the real property was taken in the names of the parties as joint tenants defendant is estopped to claim that she has more than one-half interest in the property. Plaintiff by seeking a partition and an accounting put in issue the interest of each of the parties to the real property in question. Therefore the deed of joint tenancy was only one item of evidence to be considered by the court in connection with other probative facts produced by plaintiff and defendant." (2) Further, in *Thomasset v. Thomasset*, 122 Cal.App.2d 116, 133, it was stated that: "Property may be found to be other than that indicated by the deed when there is an oral or written agreement as to the ownership of the property, or where such understanding may be inferred from the conduct and declarations of the spouses."

(*Kershman v. Kershman* (1961) 192 Cal.App.2d 23, 26.)

Here, Plaintiff is seeking a partition and accounting, which thus puts into issue the interest of each of the parties in relation to the real property in question. (*Ibid.*) A division of interest in property based on each party's contributions is an acceptable method to utilize to determine the parties' interests. (*Ibid*; *Cosler v. Norwood* (1950) 97 Cal.App.2d 665, 666.) Here, according to the only evidence submitted by Plaintiff on financial contributions to the purchase of the Property, she paid \$10,000 and

Defendant paid \$25,280. (Appendix of Evidence ISO Motion, Exh. A.) That does not even take into account Defendant's declaration that states he paid Plaintiff back the \$10,000 and paid an additional \$20,000 since the Property was purchased. (Defendant's Decl. ISO Opposition, pp. 1:27-2:11.)

Plaintiff's own declaration in support of the Motion states that:

At the time of the purchase of the Subject Property, Eddie Drummer was my nephew. Due to Mr. Drummer's poor credit history, he was unable to qualify for a mortgage on his own. ***Mr. Drummer requested that myself, and my father, Mr. Crittendon, jointly apply for a loan with Mr. Drummer so he could purchase the Subject Property.*** As a result, we applied for a loan to purchase the Subject Property, and we were approved for a loan.

(Plaintiff's Decl. ISO Motion, ¶ 4, emphasis added.)

This shows that Defendant tried to obtain the Property for himself initially. Only after he failed due to his poor credit did he request Plaintiff and her father to jointly apply for a loan with him "so he could purchase the Subject Property." (Plaintiff's Decl. ISO Motion, ¶ 4.) Plaintiff's own evidence could thus be interpreted to support Defendant's version of events. However, evidence is not weighed on motions for summary judgment. It is the moving party's burden to show no triable issue of material fact and that they are entitled to judgment as a matter of law. The Court here finds that there are triable issues of material facts regarding to the parties' respective interests in the Property and Plaintiff has not met her burden of showing otherwise.

As the California Supreme Court stated in an old, but still viable, opinion, "[the parties] are required to set forth fully and particularly the origin, nature, and extent of their respective interests in the property. This having been done, the interest of each, or all, may be put in issue by the others; and if so, such issues are to be first tried and determined, and no partition can be made until the respective interests of all the parties have been ascertained and settled by a trial."

(10 California Real Estate Law & Practice § 371.07, quoting *Morenhout v. Higuera* (1867) 32 Cal. 289, 295.)

Here, Plaintiff has failed to set forth fully and particularly the origin, nature, and extent of her and Defendant's respective interests in the Property and instead has sought to rely solely on the fact that Plaintiff and Defendant were joint tenants so therefore she is entitled to a 50% interest in the Property, *ipso facto*, which is a position the Court of Appeal has found to be meritless, as discussed above.

Ruling

The Court **DENIES** Plaintiff's motion for summary judgment.

Law & Motion

2. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT CONT'D FROM 6/26/26 PER TR
FILED BY: ABM GENERAL SERVICES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM General Services, Inc. ("ABM General") For the reasons set forth, the motion for summary judgment is **denied**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) The complaint names, among other defendants, Flowers Baking Company of Modesto, LLC, erroneously named in the complaint as Flowers Foods, Inc. ("Flowers"). Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.) ABM General moves for summary judgment. Plaintiff opposes the motion.

Legal Standards Governing Defendant's Motion for Summary Judgment

Under Code of Civil Procedure § 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

When a defendant moves for summary judgment, the defendant bears the burden of producing evidence that plaintiff cannot prove one or more essential elements of plaintiff's claim or that there is a complete defense to the claim. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c(p)(2).) Once the defendant has met this initial burden, the burden shifts to the plaintiff to produce admissible evidence showing that a triable issue exists. (*Advent, Inc. v. National Union Fire Ins. Co. of Pittsburgh, PA* (2016) 6 Cal.App.5th 443, 453; Code Civ. Proc. § 437c(p)(2).)

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . ' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of